



POLICE DEPARTMENT

November 18, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202304926 (Incident Date: June 2, 2023) regarding Detective Edwin Montanez.
Tax No. 955530 (DADS No. 2024-31970)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202304926, pertaining to Detective Edwin Montanez. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Detective Montanez would be detrimental to the Police Department's disciplinary process.

In this case, Detective Montanez and his partner observed the complainant riding a bicycle recklessly on a public sidewalk. As the officers initiated a stop of the complainant to address the violation, the complainant ran off on foot while holding his waistband. Detective Montanez, believing the complainant to be armed with a weapon, stopped the complainant at gunpoint and subsequently frisked the complainant's waistband and searched the complainant's pocket. After reviewing the evidence, including the available video footage, the Police Commissioner finds that Detective Montanez's threat of force and frisk of the complainant were within guidelines but his search of the complainant's pocket was improper. Considering the totality of the circumstances, Detective Montanez had an articulable belief that the potential for serious physical injury was present and was justified in his frisk of the complainant.

Detective Montanez has no formal discipline history and no prior substantiated CCRB cases. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action against Detective Montanez for the allegations that he improperly pointed his firearm and improperly frisked the complainant. However, the Police Commissioner intends to direct the issuance of a Schedule "A" Command Discipline with the forfeiture of one (1) vacation day for the improper search.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

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ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



November 25, 2024

The Honorable Thomas G. Donlon
Interim Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202304926 (Incident Date: June 2, 2023) regarding Detective Edwin Montanez, Tax No. 955530 (DADS No. 2024-21970)

Interim Commissioner Donlon:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated November 18, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent not to impose any disciplinary action against Detective Edwin Montanez for his wrongful use of force and his improper frisk of the complainant in the herein matter, and only direct the issuance of a Schedule “A” Command Discipline with the forfeiture of one (1) vacation days for his improper search of the complainant. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that the Police Commissioner finds that Detective Montanez’s threat of force and frisk of the complainant were within guidelines and considering the totality of the circumstances, Detective Montanez had an articulable belief that the potential for serious physical injury was present and was justified in his frisk of the complainant. CCRB disagrees with your determination.

Detective Montanez stated that when § 87(2)(b) ran from the officers, it raised Detective Montanez’s degree of suspicion about § 87(2)(b) had not said or done anything before running that indicated to Detective Montanez that § 87(2)(b) posed a threat. Then, as § 87(2)(b) ran, Detective Montanez observed that § 87(2)(b) held onto the right side of his waistband in a manner that indicated to Detective Montanez, based on his experience, that § 87(2)(b) might have a gun in his waistband. Additionally, Detective Persaud used point-to-point radio to inform Detective Montanez that § 87(2)(b) might be armed. Detective Montanez did not recall whether he observed any bulge in the area § 87(2)(b) held or if his pants appeared to be weighed down by any object. Detective Montanez stated that the only reason he believed that § 87(2)(b) might be armed was the manner in which he held his waistband as he ran. Detective Montanez then drove around the block, pulled in front of § 87(2)(b) and exited his vehicle approximately 10 feet from § 87(2)(b)

Detective Montanez then drew his gun and pointed it at § 87(2)(b). Detective Montanez stated that he pointed his gun at § 87(2)(b) because he was concerned that § 87(2)(b) might be armed because of the manner in which he held his waistband, and for no other reason.

The ruling in *People v. Riddick*, 894 N.Y.S.2d 260 (2010) states that a civilian running from officers and reaching for their waistband, without a visible outline of a gun, the click of a magazine, or other specific evidence indicating the presence of a weapon, does not furnish officers with reasonable suspicion that the individual is armed.

Detective Montanez stated that he pointed his gun at § 87(2)(b) because he believed that § 87(2)(b) might be armed, and that the basis of this concern was § 87(2)(b) holding the right side of his waistband while running from Detective Persaud. Detective Montanez stated that there was no other reason he believed that § 87(2)(b) might be armed. Per *Riddick*, in absence of more specific indicia, an individual holding onto their waistband and running from the police does not yield reasonable suspicion that the individual is armed. Although that ruling is intended assess the validity of a stop based on an officers' belief a gun was present, and not to address the propriety of gun pointing, the ruling establishes legal precedent directly applicable to Detective Montanez's actions here. Additionally, under PG 221-01, in order to draw a gun, Detective Montanez would need to articulate a belief that § 87(2)(b) posed an imminent threat of injury to someone. Per *Riddick*, Detective Montanez's observations did not yield reasonable suspicion that § 87(2)(b) was armed, and therefore Detective Montanez did not meet the standard required in PG 221-01.

Detective Montanez stated that after he pointed his gun at § 87(2)(b) held his hands up. Detective Montanez approached, holstered his gun, and then guided § 87(2)(b) arms behind him. Detective Montanez stated that upon approaching § 87(2)(b) and guiding his hands behind his back, he was no longer concerned that § 87(2)(b) was armed. According to *People v. De Bour*, 40 N.Y.2d 210 (1976) officers may conduct a frisk when they reasonably suspect that a person is armed.

Detective Montanez stated that that once he successfully stopped § 87(2)(b) he no longer believed § 87(2)(b) was armed. Per *De Bour*, Detective Montanez therefore could not lawfully frisk § 87(2)(b). *Riddick* establishes that § 87(2)(b) holding onto his waistband while running from the detectives, without more specific indicia of the presence of a weapon, did not yield a reasonable basis for Detective Montanez to believe that § 87(2)(b) was armed.

Based upon the foregoing, it is respectfully requested that you serve the Charges and Specifications against Detective Montanez in this matter.

Respectfully submitted,

Andre Applewhite

p.p., Andre Applewhite, Chief Prosecutor for
Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

November 26, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

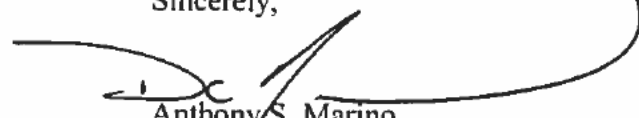
Re: CCRB Case No. 202304926 (Incident Date: June 2, 2023) regarding Detective Edwin Montanez, Tax No. 955530 (DADS No. 2024-31970)

Dear Mr. Darche:

The Police Department has reviewed your letter, dated November 25, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Detective Edwin Montanez. Nevertheless, it is maintained that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Detective Montanez for the reasons expressed in my November 18, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, and as per the direction of Interim Police Commissioner Donlon in the November 18, 2024 letter, a Schedule "A" Command Discipline will be issued with the forfeiture of one (1) vacation day for the improper search. Furthermore, no disciplinary action will be imposed for the allegation that he improperly pointed his firearm and improperly frisked the complainant.

Sincerely,


Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

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